

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X

SHANNON GREENE,

Plaintiff,

Index No.: 520527/2023

-against-

THE CITY OF NEW YORK, NYPD OFFICER MATTHEW J. CAHILL Shield No., 4139, NYPD OFFICER ANTHONY J. DONALDSON, Shield No. 4135, NYPD OFFICER BRETT GOLDBERG, Shield No. 14917, NYPD OFFICER ROBERT A. SCHIERENBECK, Shield No. 7814, NYPD OFFICER NICHOLAS E. SOMMELLA, Shield No. 22101, NYPD DETECTIVE OMAR VELIZ, Shield No. 1739, NYPD DETECTIVE KATHERINE L. SILJKOVIC, Shield No. 4932, and JOHN and JANE DOE No. 1 – 10,

**FIRST AMENDED
VERIFIED COMPLAINT**

JURY TRIAL DEMAND

Defendants.

-----X

TO THE SUPREME COURT OF THE STATE OF NEW YORK:

Plaintiff **SHANNON GREENE**, by her attorneys, DRK Law, LLC, by David R. Kline, Esq. and Cass Luskin Law, LLC, by Cass Luskin, Esq., respectfully, upon information and belief, alleges the following for this First Amended Verified Complaint:

PRELIMINARY STATEMENT

1. Plaintiff **SHANNON GREENE** is a mother of two young children. She is a lifelong resident of Brooklyn, New York and currently works as a Client Services Representative with the New York State Office of Mental Health.

2. In the early morning hours of December 17, 2022, Ms. Greene was in her apartment getting ready for work. Her youngest child, A.R.C., suffers from severe asthma and has just recently been hospitalized. As part of her morning routine, Ms. Greene must prepare

and administer a nebulizer treatment to A.R.C. Just before stepping into the shower, she put A.R.C.'s medicine into the machine and placed the mask over the child's nose and mouth. With A.R.C. safely tucked into bed, Ms. Greene went to take a shower.

3. After a quick shower, Ms. Greene walked naked and dripping wet from the bathroom to her bedroom to get dressed and check on A.R.C.

4. Suddenly and without any warning, Ms. Greene heard a thunderous bang at her front door. Bewildered and panicked, Ms. Greene followed her first instinct: protect her family. She ran for the front door and, in an attempt to impede the intruders, threw herself up against it. As she pushed with all her strength, she heard sounds of a tool being applied to the door to open it.

5. Shortly thereafter, the intruders pushed their way into Ms. Greene's apartment. Approximately ten (10) to fifteen (15) Defendant NYPD Officers poured into the apartment, guns drawn and trained directly on Ms. Greene. Naked and terrified, Ms. Greene begged the Defendant officers to allow her to get dressed. The Defendant NYPD officers refused. She then tried desperately to explain that she was on her menstrual cycle and needed feminine hygiene products. The Defendant NYPD officers refused to allow her to get the hygiene products she needed.

6. The Defendant NYPD Officers illegally arrested and detained Ms. Greene, naked as she was, for one (1) hour— a portion of which time she spent in a public hallway, in full view of her neighbors—and held her for approximately six (6) hours in total.

7. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Constitution of the United State of America, 42 U.S.C. § 1983, the laws of the State and City of New York, and the common law.

THE PARTIES

8. Plaintiff **SHANNON GREENE** is a United States Citizen and was at all times relevant herein a resident of Kings County, City and State of New York.

9. Defendant **THE CITY OF NEW YORK** (“City” or “the City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a correctional department as per the applicable sections of the New York State Correction Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

11. Defendant **NYPD OFFICER MATTHEW J. CAHILL**, Shield No., 4139, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD OFFICER MATTHEW J. CAHILL**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD OFFICER MATTHEW J. CAHILL** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

12. Defendant **NYPD OFFICER ANTHONY J. DONALDSON**, Shield No. 4135, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD OFFICER ANTHONY J. DONALDSON**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD OFFICER ANTHONY J. DONALDSON** was a duly appointed and acting officer, servant, employee,

and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

13. Defendant **NYPD OFFICER BRETT GOLDBERG**, Shield No. 14917, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD OFFICER BRETT GOLDBERG**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD OFFICER BRETT GOLDBERG** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

14. Defendant **NYPD OFFICER ROBERT A. SCHIERENBECK**, Shield No. 7814, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD OFFICER ROBERT A. SCHIERENBECK**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD OFFICER ROBERT A. SCHIERENBECK** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

15. Defendant **NYPD OFFICER NICHOLAS E. SOMMELLA**, Shield No. 22101, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD OFFICER NICHOLAS E. SOMMELLA**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD OFFICER NICHOLAS E. SOMMELLA** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

16. Defendant **NYPD DETECTIVE OMAR VELIZ**, Shield No. 1739, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD DETECTIVE OMAR VELIZ**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD DETECTIVE OMAR VELIZ** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

17. Defendant **NYPD DETECTIVE KATHERINE L. SILJKOVIC**, Shield No. 4932, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, Defendant **NYPD DETECTIVE KATHERINE L. SILJKOVIC**, was assigned to work at the NYPD 75th Precinct. In this role, Defendant **NYPD DETECTIVE KATHERINE L. SILJKOVIC** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of her employment and under color of state law.

18. Defendant **NYPD OFFICERS JOHN and JANE DOE No. 1 – 10**, were, at all times relevant to this Complaint, police officers employed by the **CITY**. In this role, Defendant **NYPD OFFICERS JOHN and JANE DOE No. 1 – 10** were a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, they were acting in the scope of their employment and under color of state law.

JURISDICTION AND VENUE

19. This action is brought pursuant to the laws of the City and State of New York, 42 U.S.C. Act of 1871 § § 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, *inter alia*.

20. Venue is proper in this county as the transactions and occurrences took place in Kings County, City and State of New York.

PROCEDURAL REUIREMENTS

21. Plaintiff has fulfilled all procedural requirements to filing suit, including complying with GML 50-e and 50-h.

22. On January 12, 2023, Plaintiff served a Notice of Claim (“NOC”) on **CITY** Defendant via the New York City, Office of the Comptroller’s eClaim system.

23. On January 30, 2023, Plaintiff received from **CITY** Defendant a Notice of Hearing pursuant to GML 50-h.

24. On April 6, 2023, Plaintiff testified at said GML 50-h Hearing.

25. More than thirty (30) days have elapsed since the filing of the NOC in this case.

26. As of the date of this Amended Verified Complaint, Defendant **CITY** has neglected and/or refused to adjust and/or pay Plaintiffs’ claim.

27. This action was commenced within one year and ninety days of the occurrence of the actions and events upon which this action is based.

JURY DEMAND

28. Plaintiff demands a trial by jury.

STATEMENT OF FACTS

29. On December 17, 2022, Plaintiff **SHANNON GREENE** was in her home located at 272 Pennsylvania Avenue, Apt. 5K, Brooklyn, New York 11207.

30. Plaintiff **SHANNON GREENE** has resided at the above address her entire life.

31. 272 Pennsylvania Avenue, Brooklyn, New York, is a multifamily apartment building.

32. Apartment 5K, Plaintiff's apartment, is one of fifteen (15) units on the fifth floor of the building.

33. At the time of incident in this case, Plaintiff lived with her boyfriend, Robin Garfield Cresso, and her two minor children, ZG and A.R.C.

34. A.R.C. has severe asthma, a condition she has suffered with since her birth. Days prior to the date of incident, A.R.C. had been hospitalized due to a severe asthma attack.

35. On the day of incident, Plaintiff awoke at approximately 5:00 a.m. Shortly after waking, Plaintiff administered a nebulizer treatment to A.R.C.

36. After Plaintiff administered the nebulizer to A.R.C., she began to get ready for work.

37. At approximately 5:50 a.m., Plaintiff had just come out of the shower and was with A.R.C. inside of her bedroom. At this time Plaintiff was naked.

38. Upon information and belief, at approximately 6:00 a.m., Defendant NYPD Officers arrived at Plaintiff's apartment.

39. Defendant NYPD Officers began to bang on Plaintiff's apartment door.

40. At no point did Plaintiff hear any Defendant NYPD Officer announce who they were or that they were NYPD officers.

41. When Plaintiff heard the noise at the door, she believed that an unknown person was attempting to break into her family's apartment, causing her great panic and alarm.

42. Fearing for her safety and that of her family, Plaintiff, still naked, ran towards the door.

43. Plaintiff then pushed her naked body up against the door in an attempt to block the would-be intruders from entering the apartment.

44. While Plaintiff pushed against the door, she heard machinery being applied to the exterior.

45. Plaintiff tried to ascertain the identity of the person or persons on the other side of the door by looking thorough the peephole, but when she did so she found that the hole was covered by some black object, making it impossible to see through.

46. After a few seconds, the door was forcibly pushed open, and Defendant NYPD Officers entered the apartment without Plaintiff's consent.

47. Multiple Defendant Officers had their guns drawn and pointed at Plaintiff.

48. Defendant **NYPD OFFICER JOHN DOE No. 1** pointed his gun at Plaintiff's head and screamed, "get on the ground," at her.

49. Plaintiff pleaded with the Defendant NYPD Officers to either allow her to get dressed or to provide her something with which to cover herself, but they refused.

50. Plaintiff then informed the Defendant Officers that she was menstruating and in need of feminine hygiene products. She begged the Defendant Officers to allow her to get a famine hygiene product, but they refused.

51. Plaintiff then requested to see a female officer, but officer Defendant **NYPD OFFICER JOHN DOE No. 1** refused to get a female officer.

52. After several minutes of standing naked in front of all Defendant NYPD Officers, Plaintiff was finally given a towel.

53. Plaintiff used the towel to cover herself as best she could, but parts of her body were still left uncovered and visible.

54. Defendant **NYPD OFFICER JOHN DOE No. 1** then ordered Plaintiff into the room where A.R.C. was using the nebulizer machine.

55. After several minutes, Defendant **NYPD OFFICER JOHN DOE No. 1** ordered Plaintiff to take A.R.C. off the nebulizer machine, even though the treatment was not complete. Plaintiff complied with Defendant **NYPD OFFICER JOHN DOE No. 1's** order and took A.R.C. into her arms.

56. Defendant **NYPD OFFICER JOHN DOE No. 1** then ordered Plaintiff, who was still in only a towel, and A.R.C. into the public hallway of the apartment building.

57. When Plaintiff stepped into the hallway, she noticed that multiple people had gathered to see what had occurred at her apartment.

58. Upon information and belief, the people who had gathered in the hallway could clearly see Plaintiff and A.R.C.

59. One witness, Tiara Boyland, saw Plaintiff held naked in the hallway by Defendant **NYPD OFFICER JOHN DOE No. 1**, with her buttocks and genitals exposed for approximately nine (9) minutes.

60. Ms. Boyland also heard Plaintiff repeatedly beg Defendant **NYPD OFFICER JOHN DOE No. 1** to allow her to get dressed— pleas which were all denied.

61. Because Plaintiff was holding A.R.C., her towel began to fall, exposing more her body to the onlookers.

62. Plaintiff repeatedly asked Defendant **NYPD OFFICER JOHN DOE No. 1** to help her pull the towel up, but he refused.

63. Plaintiff was detained naked and terrified by Defendant NYPD Officers for nearly one (1) hour.

64. After an hour of being held naked by all male Defendant NYPD Officers, a female Defendant NYPD Officer arrived at the scene.

65. Defendant **NYPD OFFICER JANE DOE No. 1** allowed claimant to get dressed.

66. After approximately six (6) hours, the Defendant NYPD Officers finally released Plaintiff and left her apartment.

67. While the Defendant NYPD Officers detained Plaintiff, they searched her apartment. During the search, Defendant NYPD Officers intentionally, recklessly, and/or negligently damaged approximately \$2,000 - \$3,000 worth of property, including, but not limited to, Christmas presents that had been laid out under the Christmas tree.

68. As a direct result of Defendants' actions, Plaintiff was illegally detained and arrested for a period of approximately six (6) hours.

69. As a direct result of Defendants' actions, Plaintiff was subjected to excessive force by Defendant NYPD Officers in that they forcibly grabbed her person and pointed guns at her head and face.

70. As a direct result of Defendants' actions, Plaintiff has suffered severe emotional and psychological injuries, including, but not limited to, Post Traumatic Stress Disorder ("PTSD").

71. As a direct result of Defendant's actions, Plaintiff suffered severe embarrassment and humiliation, in that her neighbors and friends witnessed her naked and weeping in a public hallway of her apartment building.

72. As a direct result of Defendant's actions, Plaintiff has suffered severe and irrevocable reputational damage in that her neighbors and friends in the building look at her in a negative way because of her false arrest.

STATE LAW CLAIMS

CAUSE OF ACTION ONE **Common Law False Arrest**

73. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

74. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob Plaintiff **SHANNON GREENE** of her freedom of movement.

75. As detailed in the preceding paragraphs, Defendants did confine Plaintiff without probable cause.

76. Plaintiff was conscious of her unlawful confinement.

77. Plaintiff did not consent to her unlawful confinement.

78. The Defendants each deprived Plaintiff knowingly, intentionally, recklessly, and negligently.

79. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

80. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

81. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

82. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION TWO

Assault

83. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

84. The Defendants, acting in concert, did make offensive contact with Plaintiff Shannon Greene's body and in doing so caused significant physical injury.

85. Plaintiff did not consent to any physical contact from any Defendants.

86. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

87. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

88. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

89. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION THREE
Battery

90. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

91. The Defendants, acting in concert, did make offensive contact with Plaintiff Shannon Greene's body and in doing so caused significant physical injury.

92. The Defendants, acting in concert, did, through their intentional and/or reckless actions, put Plaintiff in imminent apprehension of harmful contact.

93. Plaintiff did not consent to any physical contact from any Defendants.

94. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

95. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

96. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

97. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION FOUR
Intentional Infliction of Emotional Distress

98. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

99. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against Plaintiff **SHANNON GREENE** that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically, *inter alia*, the NYPD Defendants held Plaintiff in handcuffs, naked in a public hallway of her apartment building.

100. The Defendant NYPD Officers' conduct towards Plaintiff was extreme and outrageous.

101. The Defendant NYPD Officers' conduct had a substantial probability of causing severe emotional distress to Plaintiff.

102. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

103. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

104. Defendant CITY, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

105. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION FIVE
Negligent Infliction of Emotional Distress

106. Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

107. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against Plaintiff SHANNON GREENE that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically, *inter alia*, the NYPD Defendants held Plaintiff in handcuffs, naked in a public hallway of her apartment building.

108. The Defendant NYPD members and officers' conduct towards Plaintiff was extreme and outrageous.

109. The Defendant NYPD members and officers' conduct had a substantial probability of causing severe emotional distress to Plaintiff.

110. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

111. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity

to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

112. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

113. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION SIX
Negligent Hiring, Retention, and Supervision

114. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

115. Upon information and belief, the Defendant NYPD Officers involved in this incident were unfit and incompetent to serve as NYPD police officers and members.

116. Upon information and belief, Defendant **CITY's** negligence in screening, hiring, training, disciplining, and retaining these Defendant NYPD Officers caused or proximately caused each of Plaintiffs' injuries, including, but not limited to, her emotional and psychological injuries.

CAUSE OF ACTION SEVEN
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Search and Seizure

117. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

118. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob Plaintiff **SHANNON GREENE** of her freedom of movement.

119. Plaintiff is a “person aggrieved,” as defined by New York City Administrative Code § 8-801.

120. As detailed in the preceding paragraphs, Defendant NYPD Officers did confine Plaintiff without probable cause.

121. Plaintiff was conscious of her unlawful confinement.

122. Plaintiff did not consent to her unlawful confinement.

123. The Defendant NYPD Officers each deprived Plaintiff of her freedom of movement knowingly, intentionally, recklessly, and negligently.

124. Defendant NYPD Officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

125. The Defendants were acting in their official capacities as NYPD officers and members, under color of law.

126. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

127. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

128. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION EIGHT
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Use of Excessive Force

129. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

130. The CITY Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, use excessive force against Plaintiff.

131. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

132. The Defendant NYPD Officers, acting in concert and under color of state law, did, without probable cause or legal justification, use excessive force against Plaintiff.

133. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab Plaintiff and use excessive force against her. Moreover, Defendant NYPD Officers did point their guns directly at her face and head.

134. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

135. Defendant NYPD Officers are "covered individuals," as defined by New York City Administrative Code § 8-801.

136. The Defendants were acting in their official capacities as NYPD officers and members, under color of law.

137. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

138. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

139. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

FEDERAL LAW CLAIMS

CAUSE OF ACTION NINE

42 U.S. Code § 1983 – Deprivation of Fourth Amendment Rights to be Free from Unreasonable Searches and Seizure

140. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

141. The **CITY** Defendant and each individual Defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive Plaintiff **SHANNON GREENE** of her constitutional rights secured by 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

142. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob Plaintiff **SHANNON GREENE** of her freedom of movement.

143. As detailed in the preceding paragraphs, Defendants did physically confine Plaintiff without probable cause.

144. Plaintiff was conscious of her unlawful confinement.

145. Plaintiff did not consent to her unlawful confinement.

146. The Defendants each deprived Plaintiff knowingly, intentionally, recklessly, and negligently.

147. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

148. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

149. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

150. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION TEN

42 U.S. Code § 1983 – Deprivation of Fourteenth Amendment Right of Due Process / Fourth Amendment Excessive Force

151. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

152. The **CITY** Defendants and each individual Defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive Plaintiff

SHANNON GREENE of her constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

153. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, use excessive force against Plaintiff.

154. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab Plaintiff and use excessive force against her. Moreover, Defendant NYPD Officers did point their guns directly at her face and head.

155. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

156. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

157. As a direct and proximate cause of the Defendants' actions in this matter, Plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

WHEREFORE, Plaintiff **SHANNON GREENE** respectfully requests judgement against Defendants as follows:

- a. An award of compensatory damages against all Defendants in an amount to be determined at trial.
- b. An award of punitive damages against all Defendants in an amount to be determined at trial.
- c. An award of reasonable attorney's fees and costs.

- d. Such other relief that this Courts deems just and proper, together with attorney's fees, interest, costs, and disbursements.

Dated: Brooklyn, New York
August 9, 2023

DRK Law, LLC

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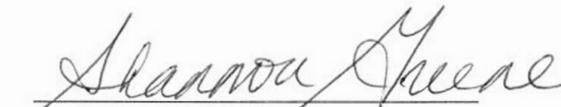
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Attorneys for Plaintiff

VERIFICATION

I, **SHANNON GREENE**, being duly sworn, deposes and says:

I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.


SHANNON GREENE

STATE OF NEW YORK
COUNTY OF KINGS

)
) ss.:

On the 9 Day of AUGUST 2023, before me personally came **SHANNON GREENE**, to me known, and known to be the same person described in and who executed the foregoing Consent to Change Attorney and acknowledged to me that he/she executed the same.


NOTARY PUBLIC

